



Republic of the Philippines
Province of Cavite
City of Imus

OFFICE OF THE CITY MAYOR

EXECUTIVE ORDER NO. 76

Series of 2022

**AN ORDER CREATING THE CITY OF IMUS ANTI-ILLEGAL REAL ESTATE
PRACTICES INTER-AGENCY TASK FORCE**

WHEREAS, the Department of Human Settlements and Urban Development (DHSUD) continues to receive an alarming number of verified reports concerning real estate-related illegal transactions, specifically on housing, subdivision, and condominium projects, wherein unregistered developers and real estate brokers, agents, and salespersons are found to be selling units or lots to the public without the proper project certificates of registration and licenses to sell. Such swindlers have taken advantage of social media and other marketing tools to post and share false advertisements and promotions on housing, subdivision, and condominium project units for sale to unsuspecting buyers.

WHEREAS, against the regulations of the DHSUD, these unregistered, fly-by-night developers, brokers, agents, and salespersons present themselves as professionals as defined by Republic Act No. 9646, also known as the "Real Estate Service Act of the Philippines." As part of their ploy, they:

1. Show and lay down attractive deals on sham housing, subdivision and condominium projects, farm lots, and memorial park developments;
2. Aggressively offer units belonging to existing projects at prices lower than their market values, and then quickly become out of reach by their victims after payment has been received;
3. Sell a certain housing, subdivision and condominium project unit, or a farm or memorial park lot to two (2) or more persons without the issuance of the corresponding deeds of conveyance to them;
4. Sell a project unit that is either mortgaged in favor of a financial institution or not registered at all; and
5. Facilitate the sale or conveyance of a project unit by acting as an intermediary, agent, or broker without being duly authorized by either the developer, project/lot owner, or the buyer.

WHEREAS, as a consequence, the lifetime savings and hard-earned money of unwary buyers are unjustly taken away from them as they either fail to determine whether the persons they are dealing with are legitimate and/or registered brokers or salespersons or not; and/or fail to require said purported



Republic of the Philippines
Province of Cavite
City of Imus

OFFICE OF THE CITY MAYOR

agents to show them copies of the certificates, permits and licenses required of all real estate projects.

WHEREAS, these fraudulent acts, punishable under Presidential Decree No. 957, otherwise known as *"Regulating the Sale of Subdivision Lots and Condominiums, Providing Penalties for Violations Thereof"*, not only undermine the land and housing program of the government but also defeat the objective of enhancing the economic, social, and moral condition of the Filipino people.

WHEREAS, the DHSUD, with mandate to protect the rights of buyers of subdivision houses and/or lots, condominium units, and memorial lots and given its regulatory powers under Republic Act No. 11201, has taken concrete steps to effectively curtail the commission of these fraudulent acts, such as engaging the assistance and services of concerned stakeholder-agencies in the drive against these illegal real estate practices.

WHEREAS, Joint Memorandum Circular No. 01, Series of 2021 dated 02 July 2021 was issued by the DHSUD, DILG, DOJ, DENR, NBI, LRA, PRC, and PNP to pursue a nationally and locally implemented comprehensive program that sufficiently addresses corrupt real estate practices prevalent in the country.

WHEREAS, the said Circular provides for the creation of the Local Task Force to be composed of the DHSUD, Local Chief Executive, DILG City Director/MLGOO, City/Municipal ENRO, Chief of Police, City or Municipal Legal Officer and such other officials as may be determined by the Local Task Force.

NOW, THEREFORE, I, HON. ALEX L. ADVINCULA, Mayor, City of Imus, Cavite, by virtue of the powers vested in me by law, do hereby order the following:

Section 1. Adoption of the Circular. Except as herein stated, the City of Imus shall adopt the Joint Memorandum Circular No. 01, Series of 2021 dated 02 July 2021 issued by the DHSUD, DILG, DOJ, DENR, NBI, LRA, PRC, and PNP.

Section 2. Objective. This Executive Order is issued consistent with the provisions of Joint Circular mentioned above. It aims to put an end to the illicit practices of unscrupulous developers, real estate brokers, agents, and salespersons engaged in the illegal selling of subdivision houses and/or lots, condominium units, and memorial lots. It shall provide the parameters for collaboration among the different national and local government agencies and other concerned stakeholders



Republic of the Philippines
Province of Cavite
City of Imus

OFFICE OF THE CITY MAYOR

in the industry, to protect home and project unit buyers, especially overseas Filipino workers, from becoming victims of real estate-related illegal transactions.

Section 3. Creation and Composition of the Task Force. The City of Imus "Anti-Illegal Real Estate Practices Inter-Agency Task Force" (hereinafter referred to as the "Task Force" for brevity) is hereby created upon the effectivity of this Order.

Pursuant to Section 5.3 of the Joint Circular, the Task Force shall be composed of the following:

Chairperson	:	Assistant Regional Director – DHSUD
Co-Chairperson	:	Hon. Alex L. Advincula City Mayor
Co-Chairperson	:	Joseph Ryan V. Geronimo City Local Government Operations Officer
Members	:	Dorotea L. Sagenes City Environment and Natural Resources Officer
		PLtCol. Jose Junar P. Alamo Imus City Chief of Police
		Atty. Leonard Martin E. Syjuco City Legal Officer

The Task Force may designate other officials as additional members of the Task Force.

The Chairpersons shall have the operational control and supervision of the Task Force, and the overall responsibility of ensuring that the objectives of the Joint Circular are accomplished.

Section 4. Technical Working Group- The Task Force shall, upon initial meeting, determine the composite members of the Technical Working Group, taking into consideration the inclusion of the private sector real estate professionals among its members.



Republic of the Philippines
Province of Cavite
City of Imus

OFFICE OF THE CITY MAYOR

Section 5. Secretariat- The Secretariat of the Task Force, to be composed of the employees from DHSUD Central or Regional Offices, shall be responsible for providing technical support, documentation of proceedings, preparation of reports and such other assistance as may be required in the discharge of its functions.

Section 6. Functions of the Task Force- The Local Task Force shall:

- a. Implement the plans, programs, and projects cascaded to it by the National and Regional Task Forces;
- b. Coordinate and monitor the execution of the provisions of this Circular at the LGU level;
- c. Coordinate closely with the Regional Task Force and enter into a Memorandum of Understanding with the latter to ensure the effective implementation of this Circular;
- d. Submit regular status reports on the progress of the implementation of the provisions of this Circular, as well as its policy recommendations, to the Regional Task Force;
- e. Conduct information, education, and communication activities to increase the awareness of the public on the modus operandi of real estate scammers;
- f. Promptly file and prosecute cases concerning violations of Republic Act No. 9646, Republic Act No. 11201, Presidential Decree No. 957 and other related laws, provide legal assistance to law enforcers, and ensure the availability of public attorneys for the protection of individual's rights;
- g. Assist the LGUs in the formulation of programs, projects, or activities in relation to addressing and protecting the public from illegal real estate practices; and
- h. Perform such other functions consistent with the provisions of this Circular or as may be directed/delegated by the National or Regional Task Force.

Section 7. Funding- The City shall charge against its current appropriations such amounts as may be necessary for the implementation of this Executive Order, subject to the budgetary, accounting, and auditing rules and regulations.

Section 8. Separability- If any provision of this Circular is declared unconstitutional or void by any court of competent jurisdiction, or the applicability



Republic of the Philippines
Province of Cavite
City of Imus

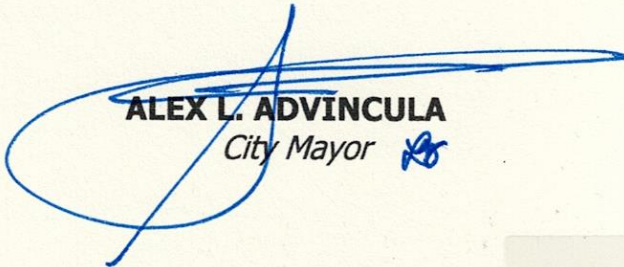
OFFICE OF THE CITY MAYOR

thereof to any person or circumstances is held invalid, the constitutionality and validity of the remainder of this Order shall not be affected thereby. To this end, the sections and provisions hereof are declared to be severable

Section 9. Repealing Clause- All other orders issued inconsistent with this Order are hereby repealed or modified accordingly.

Section 10. Effectivity Clause- This Order shall take effect immediately.

DONE and **SIGNED** this 13th day of December 2022, City of Imus.


ALEX L. ADVINCULA
City Mayor 